

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: June 10, 2026 TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 8	25CV462393	Amanda Hulse vs Mercedes-Benz USA, LLC	Motion: Compel Ctrl Click (or scroll down) on Line 8 for tentative ruling.
		9:01 CALENDAR	
9:01 LINE 1	21CV377860	George Jones vs Michael Liddle et al	Hearing: Order of Examination Parties to appear if and as needed for continuing examination.

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Calendar Line 3

Case Name: *Esther Mayora vs Volkswagen Group of America, Inc.*

Case No.: 24CV450793

Plaintiff has filed a late opposition to Defendant's motion for an order compelling Plaintiff to appear for deposition by remote electronic means and to produce documents or in the alternative continue trial. To some extent, the Court understands the confusion. Subsequent to the filing of the motion, the Court, by separate application, did continue the trial date. The order continuing trial, however, was based on Defendant's request that the Court *either advance* the hearing on this motion *or* continue the trial. The Court continued the trial. The Court did not advance the hearing on this motion, thereby leaving this motion on calendar for June 10, 2026.

Although, Defendant did not withdraw the instant motion as moot, under the circumstances here, the Court finds that it is moot. The Court is aware that as a part of a separate stipulation and proposed order, the parties indicated that "Plaintiff's counsel is in the process of confirming earliest availability to produce Plaintiff for deposition." Trial is now set for February 16, 2027. So long as Plaintiff, in good faith, properly sits for deposition within the parameters of the currently set trial date, Court involvement should not be necessary.

The Court will prepare the final order.

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